

M/S Maheshwari Flour Mills, Sitapur v. State of U.P. & Others

Allahabad High Court (Lucknow Bench) · Division Bench · 6 June 2023 · 2023:AHC-LKO:40369-DB · Writ - C No. 4856 of 2023 · **Writ petition disposed of; the petitioner to apply to the Executive Engineer under Clause 6.5 within 15 days, for a decision preferably within six weeks; no coercive steps until that decision, and the protection lapses if no application is filed; the dues and the citation dated 18.05.2023 were not decided**

HEADNOTE

Where a flour-mill consumer challenges a recovery citation dated 18 May 2023 and seeks correction of electricity bills, and an earlier writ (Writ-C No. 26570 of 2021) is said to have directed deposit of prior dues in instalments, the writ court will not decide the outstanding. After it was pointed out that Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an efficacious remedy for settling the dues and correcting the bills, the petition is disposed of with a direction to file an application before the Executive Engineer under that clause within 15 days. If the application is made to respondent no. 5, it is to be considered and decided expeditiously, preferably within six weeks. Till that decision, no coercive steps are to be taken. If no application is moved, the benefit of the order is not available. The Court recorded that the Executive Engineer was said to have power to allow instalments. It did not decide the quantum, compliance with the earlier writ, or the recovery citation of 18 May 2023.

FACTUAL SUMMARY

M/S Maheshwari Flour Mills, Sitapur, through Ashish Maheshwari, challenged a recovery citation dated 18 May 2023 and sought correction of the electricity bills of its flour mills. On 2 June 2023 counsel for respondents 3 to 6 said that in Writ Petition No. 26570 (MB) of 2021 this Court had, on 17 November 2021, interfered with the recovery citation and directed a deposit of Rs 20,00,000 within one month and the balance, with interest, in instalments. Compliance was not shown, and the case was listed in the top ten on 6 June 2023 for the outstanding to be placed on record.

On that day the earlier writ was described as disposed of on 29 July 2022, with a direction to deposit a recovery of Rs 48,59,609 in instalments. The petitioner had paid only part. Further notices had issued, and the dues were put at about Rs 62 lakhs. The petitioner said the earlier order had been complied with and sought leave to apply to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Outstanding dues and bill correction go to the Executive Engineer under Clause 6.5; coercive steps are stayed only if that application is filed

QUESTION

Where a consumer seeks to set aside a recovery citation and to have electricity bills corrected, and Clause 6.5 is pointed out as the remedy, will the writ court decide the dues?

HOLDING

No. The petition was disposed of on the footing that Clause 6.5 of the U.P. Electricity Supply Code, 2005 is an efficacious remedy for settling the dues and correcting the bills. The petitioner was directed to file an application before the Executive Engineer under Clause 6.5 within 15 days, with the documents and the payments. If the application is made to respondent no. 5, he shall consider and decide it expeditiously, preferably within six weeks thereafter. Till that decision, no coercive steps shall be taken. If the petitioner does not move the application, the benefit of the order is not available. The outstanding, put at about Rs 62 lakhs, and the recovery citation dated 18.05.2023 were neither quashed nor affirmed. ¶ 5-8

QUALIFIER

The stay on coercive steps is conditional on the application being filed. The Court recorded, without identifying a clause, that the Executive Engineer was said to have power to permit payment of the

outstanding in instalments.

FLAG The PDF contains two orders in Writ-C No. 4856 of 2023. The order of 2.6.2023 (Alok Mathur and Subhash Vidyarthi, JJ.) only lists the case on 6.6.2023 in the top ten. Its paragraphs 2 to 4 record the prayer against the recovery citation dated 18.05.2023 and counsel's reference to an order dated 17.11.2021 in Writ Petition No. 26570 (MB) of 2021 directing a deposit of Rs 20,00,000 and the balance with interest in instalments, compliance with which was not stated. Paragraphs of the holding are counted in the disposing order of 6.6.2023 (Alok Mathur and Jyotsna Sharma, JJ.): (1) hearing; (2) recovery of Rs 48,59,609 and disposal of Writ-C No. 26570 of 2021 on 29.07.2022; (3) part payment and later recovery notices; (4) outstanding of about Rs 62 lakhs; (5) Clause 6.5 as the remedy for settling dues and correcting bills; (6) information that the Executive Engineer may allow instalments, and the petitioner's request to apply; (7) direction to apply within 15 days, to be decided by respondent no. 5 preferably within six weeks; (8) no coercive steps until that decision, else the benefit is unavailable. Neutral Citation No. 2023:AHC-LKO:40369-DB is printed in the extract immediately before the 6.6.2023 cause title. The two orders give different dates, 17.11.2021 and 29.07.2022, for the earlier writ. The order cites Clause 6.5 of the U.P. Electricity Supply Code, 2005, and does not cite Clause 6.5(b) or Clause 6.14. No precedent is cited.

PRINCIPLE TAGS

clause-6.5-alternate-remedy The recovery citation of 18.05.2023 and the prayer to correct the bills were not examined. The petitioner was directed to apply under Clause 6.5 within 15 days, for a decision preferably within six weeks, with no coercive steps until that decision and no protection if the application is not filed. ¶ 5-8

clause-6.5-representation-executive-engineer The application is to be made to the Executive Engineer. The operative paragraph treats that application as one made to respondent no. 5, who is to consider and decide it. ¶ 6-7

bill-correction-clause-6.5 Settlement of the outstanding and correction of the electricity bills were treated as a Clause 6.5 application, to be supported by documents and proof of payment. The Court did not itself correct the bills. ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 18.05.2023 SHOULD BE SET ASIDE, AND THE CORRECTNESS OF THE BILLS AND OF THE OUTSTANDING OF ABOUT RS 62 LAKHS

The prayer to set aside the citation is in paragraph 2 of the order dated 2.6.2023. The disposing order neither quashed nor affirmed the citation or the bills, and left both to the Clause 6.5 application. ¶ 7-8

NOT DECIDED — WHETHER THE PETITIONER HAD COMPLIED WITH THE EARLIER ORDERS IN WRIT-C NO. 26570 OF 2021

On 2.6.2023 compliance with the order dated 17.11.2021 was not disclosed. On 6.6.2023 the petitioner said the order of 29.07.2022 had been complied with, while the narrative also records that only part of the dues had been deposited. The Court did not resolve that dispute, and the two orders in this writ refer to the earlier proceedings by those different dates. ¶ 2-5

NOT DECIDED — WHETHER, AND UNDER WHICH CLAUSE, THE EXECUTIVE ENGINEER MAY ALLOW THE OUTSTANDING TO BE PAID IN INSTALMENTS

The Court recorded that it was informed of such a power. It did not identify a clause or fix an instalment schedule. ¶ 6